

25PSCV04009 25PSCV04009

County: los-angeles

Division: Civil Law and Motion

Department: 6

Hearing date: 2026-07-29

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CIT%2C6%2C07%2F29%2F2026

Source SHA-256: 19dc2a012af56d2f4a3e6375944e6bb7ba9c98ba6b6f3d5635b7b10ccf4f7244

Case Number: 25PSCV04009 Hearing Date: July 29, 2026 Dept: 6

Plaintiff JPMorgan Chase

Bank. N.A.'s Request for Entry of Default Judgment

Defendants: Noble Q Project,

Inc. And Xiangfei Chen

TENTATIVE RULING

Plaintiff's request for entry of default
judgment is DENIED without prejudice.

BACKGROUND

This is a lending dispute. On November 4, 2025,
Plaintiff JPMorgan Chase Bank, N.A. (Plaintiff) filed this action against
defendants Noble Q Project, Inc., Xiangfei Chen (collectively, Defendants), and
Does 1 through 20, alleging causes of action for breach of contract and breach
of guaranty.

On

June 25, 2026, default was entered against Defendants. On the same date,
Plaintiff requested entry of default judgment against Defendants.

LEGAL

STANDARD

Code of

Civil Procedure section 585 permits entry of a default judgment after a party

has failed to timely respond or appear. (Code Civ. Proc., § 585.) A party seeking judgment on the default by the court must file a Request for Court Judgment and: (1) a brief summary of the case; (2) declarations or other admissible evidence in support of the judgment requested; (3) interest computations as necessary; (4) a memorandum of costs and disbursements; (5) declaration of nonmilitary status; (6) a proposed form of judgment; (7) a dismissal of all parties against whom judgment is not sought or an application for separate judgment under Code of Civil Procedure section 579, supported by a showing of grounds for each judgment; (8) exhibits as necessary; and (9) a request for attorneys' fees if allowed by statute or by the agreement of the parties. (Cal. Rules of Court, rule 3.1800, subd. (a).)

ANALYSIS

Plaintiff

seeks default judgment against Defendants in the total amount of \$91,586.45, including \$83,241.78 in damages, \$7,767.63 in attorney fees, and \$577.04 in costs. The Court finds Plaintiff's default judgment request largely in order, except that Plaintiff's attorney fees request is overstated. The correct amount would be \$2,554.84, i.e., 2% of \$33,241.78 (\$83,241.78 less \$50,000.00) plus \$1,890.00. (Local Rules, rule 3.214.)

The

Court then notes that Plaintiff did not sign the declaration of non-military status. (CIV-100, ¶ 8.) This is mandatory. (Cal. Rules of Court, rule 3.1800, subd. (a)(5).)

The

Court further notes that one of the documents Plaintiff submitted entitled, "Declaration of Counsel for Plaintiff Pursuant to C.C.P. 1033(b)" is not signed or dated. (See Declaration of Counsel for Plaintiff Pursuant to C.C.P. 10339(b), p. 2)

CONCLUSION

Plaintiff's

request for entry of default judgment is DENIED without prejudice.